

IN THE SUPREME COURT OF INDIA

Civil Appeal No. 4100/2024

Date of Decision: 22-05-2024

Anand Kumar ... Appellant

VERSUS

Max Healthcare Ltd ... Respondent

FACTS OF THE CASE:

1. Deficiency of medical service under Consumer Protection Act, 2019.

ISSUES:

1. Standard of reasonable duty of care.

REASONING & DECISION:

Medical negligence established due to failure of standard post-operative protocol.

RATIO DECIDENDI:

Deficiency in service includes failure to adhere to accepted medical protocols.

DECISION:

Compensation of Rs 25 Lakhs awarded.